

Shrawan Yadav v. State of U.P. and Others

High Court of Judicature at Allahabad · Division Bench · 1 April 2024 · 2024:AHC:55593-DB · Writ-C No. 4693 of 2024
· **Petition disposed as infructuous; fresh order under Supply Code**

HEADNOTE

The Electricity Department withdrew the recovery citation dated 31 August 2021 on 21 February 2024 for a procedural defect. The writ was disposed of as infructuous, with liberty to the Department to pass a fresh order strictly in accordance with the procedure under the U.P. Electricity Supply Code, 2005.

FACTUAL SUMMARY

Shrawan Yadav challenged a recovery citation dated 31 August 2021 issued by respondent no. 5 for electricity dues. The writ was listed afresh, the Electricity Department took time to obtain instructions, and the petition was then connected with Writ-C No. 3458 of 2024, with existing interim orders continued. By a short counter affidavit the Executive Engineer stated that the recovery certificate had been withdrawn on 21 February 2024 because of a procedural defect, the Department reserving liberty to pass a fresh order.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

Fresh order after withdrawal of a recovery citation

HOLDING

The writ challenging the recovery citation dated 31 August 2021 is disposed of as infructuous once the Electricity Department withdraws the recovery certificate for a procedural defect. Any fresh order may be passed only by strictly following the procedure prescribed under the U.P. Electricity Supply Code, 2005. ¶ 3

FLAG No clause number is cited. Catalog hits UP-2005::6.3 and UP-2005::16.1.4 are not applied.

PRINCIPLE TAGS

fresh-recovery-order-must-follow-supply-code The Department had withdrawn the recovery certificate for a procedural defect and reserved liberty to proceed again. The Court treated the writ as infructuous and confined that liberty to the procedure in the U.P. Electricity Supply Code, 2005. ¶ 2-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ELECTRICITY DUES WERE PAYABLE, AND THE TERMS OF ANY FRESH RECOVERY ORDER

The citation was withdrawn for an unidentified procedural defect. The Court did not examine the dues. ¶ 2-3